

**Senate Stating Committee on Legal and Constitutional Affairs,
*Delaying Justice is Denying Justice: An Urgent Need to Address
Lengthy Court Delays in Canada (June 2017) (Excerpts)***

The full report is available online:

https://sencanada.ca/content/sen/committee/421/LCJC/reports/Court_Delays_Final_Report_e.pdf

CHAPTER TWO – UNDERSTANDING THE BASICS OF DELAYS

[...]

Alternatives in Provincial Offences

The committee explored various ideas for addressing delays with a view to reducing the demand on our criminal justice system. One alternative is to find ways to address social problems and anti-social behaviour by means other than criminal laws. There are many regulatory offences in Canada passed by provincial, territorial and federal governments that are dealt with by other procedures than those involving criminal court.

The example discussed by witnesses that illustrates the potential benefits of having alternatives to *Criminal Code* offences pertained to how provinces deal with impaired driving. All provinces have provisions in their road and highway safety laws for imposing administrative sanctions on those who drive under the influence of drugs or alcohol. Permitting police to deal with drivers with lower levels of impairment by using provincial statutes (rather than the *Criminal Code*) could be providing the means to deal with this problem more efficiently. The committee heard evidence on this particular topic from several police representatives and defence lawyers, some of whom had a practice dedicated to impaired driving cases.¹³⁵ We also heard from British Columbia's Superintendent of Motor Vehicles as that province has adopted the Immediate Roadside Prohibition (IRP) program as an alternative to laying criminal charges.

[...]

A potential solution that could simplify and speed up the way impaired driving cases are handled is found in the British Columbian approach. The province has adopted an almost exclusively regulatory scheme under the *Motor Vehicle Act* that operates as an alternative route for cases with a low level of impairment. As explained by Sam MacLeod, Superintendent of Motor Vehicles, British Columbia Ministry of Public Safety and Solicitor General:

To respond to this problem [the drinking and driving fatality rate] and the overload in the court system the IRP [Immediate Roadside Prohibition] was introduced in September 2010. On how it works, the IRP program delivers immediate and significant sanctions under the *Motor Vehicle Act*. These include monetary penalties, immediate licence

prohibitions, immediate vehicle impoundments, mandatory referrals to the remedial programs, and often times a requirement for an ignition interlock. The IRP model is designed to be efficient for police to use. It is done at roadside. There is no requirement to go back to a detachment with a driver for further breath screening.

Superintendent MacLeod also said that “[t]he police have the opportunity to use the pre-existing tools of *Criminal Code* charges for more significant offences or a driver with multiple IRPs.” As a consequence of this approach, he further explained that the province witnessed a reduction in fatalities, injury collisions and property damage.¹⁴³

[...]

However, other witnesses expressed concerns. Rick Woodburn asked whether it is in the public interest to give the equivalent of a speeding ticket for drunk driving. Vancouver defence lawyer Paul Doroshenko expressed several strong concerns about the IRP program, saying that:

The government essentially replaced impaired driving prosecutions with Immediate Roadside Prohibition based on approved screening device results. By creating this administrative scheme the government essentially opted out of the Charter and Charter rights, opted out of any meaningful disclosure process and opted out of any meaningful test of police evidence.

[...]

Considering these types of alternatives requires proceeding with care to ensure that procedural fairness and jurisdictional issues are properly considered. There is, however, merit in evaluating the potential to reduce the demand on our criminal justice system through provincial or other statutory offences. Realizing the full potential of these benefits will require cooperation between the federal government and the provinces to ensure that any legislative proposals are not only practical, but also respect the constitution.

[...]

CHAPTER EIGHT - APPROPRIATE MEASURES: ALTERNATIVES TO THE TRADITIONAL CRIMINAL JUSTICE MODEL

In Chapter Two, this report examined the traditional criminal justice system and how it handles proceedings from the laying of criminal charges against a person through to the final disposition of those charges. Solutions for improving the efficiency, expediency and fairness of this system must rightly look at which parts of this system can be fixed or improved. Many witnesses asked the committee to consider whether the traditional criminal justice model was itself appropriate for handling all the types of cases that pass through it, and to study alternatives to this model

operating across Canada. During one of the first hearings for this study, the Honourable Patrick J. LeSage, former Chief Justice of the Ontario Superior Court of Justice, provided a quote that others returned to afterwards:

I think that when starting your review, you must look at and consider whether the criminal justice system is really structured to handle much of what it receives. It receives the addicted, the homeless, the poverty stricken and the mentally ill, but the criminal justice system was not meant to really deal with those sorts of issues, and more and more they are taking up the time.

The evidence the committee heard on this question was quite clear: positive outcomes are being produced in Canada when it is possible to divert appropriate persons from the traditional court system to processes that are more suited not only to their rehabilitation, but also to the needs of society and victims of crime as well. The processes considered during our study included such measures as: restorative justice programs; specialized and therapeutic courts; pre-charge and post-charge diversion programs; court liaison programs; and integrated multi-agency teams, such as the Hub in Prince Albert, Saskatchewan. We also heard how the principles of restorative justice can and have influenced these measures in various ways, in particular with regard to the flexibility built into the criminal law for youths in Canada.

[...]

An important point raised by Kevin Fenwick, then Deputy Minister and Deputy Attorney General with the Government of Saskatchewan's Ministry of Justice, was of the need to be wary of using the term "alternative" when talking about programs that divert accused persons and offenders away from the traditional courthouse route, saying that he preferred the term "appropriate measures." The committee concurs, since "alternative" suggests that such measures present a separate kind of justice or a different legal culture. What became clear from our study is that these measures have support across a diverse range of stakeholders in the justice system. And yet, many of these measures are still being tested and evaluated, rolled out in pilot projects, or are available only in certain parts of the country and they are still very much seen by many in the legal community as alternative streams.

Restorative justice programs, specialized courts, diversion programs and addictions treatment, among other initiatives, need to be more widely available to Canadians. They need to be brought into the mainstream of justice culture. They need to be recognized by justice system participants, whether lawyers, judges, police officers, social workers or other public servants, to be viable options that advance the goals of our justice system as much as the traditional courthouse can. Indeed, the measures explored in this chapter appear to work best when they are integrated as part of a range of options for dealing with accused persons, including the courthouse route. They require that justice system participants work together to determine how accused persons, offenders and persons who are at-risk of criminal behaviour can best be treated and/or rehabilitated.

When witnesses advocated for appropriate measures, there was no suggestion that sentences should not reflect the severity of an offender's crimes, nor that such measures should detract

from the value placed on the principles of denunciation and deterrence of crime. The justice community needs to be mindful that appropriate measures can improve the outcomes of our justice system, and, importantly for this study, improve the efficiency and fairness of our system, thereby reducing delays. Toronto lawyer Mary Murphy explained this further: “[A] system that is in place to effectively offer tools and strategies to rehabilitate individuals both promotes safety in the community and reduces the need for courts to allocate resources for trial time.”